and Geodetic Survey Chart No. 8256, March 1931.

From the point of beginning, by metes and bounds,

East, 4,833 feet, to a point;
North, 5,333 feet, to line of mean high tide on the west shore of Kruzof Island;
Southwesterly, with meanders around Beaver Point, to the place of beginning.

The area described aggregates 370 acres.

VICINITY OF SEWARD

(3) Renard Island Area

All of Renard Island and rocks adjacent thereto, lying between 59°53'38" and 59°56'36" north latitudes, and 149°18'48" and 149°22'15" west longitudes, as shown on United States Coast and Geodetic Survey Chart No. 8529, June 1940.

The area described aggregates 1,510 acres.

(4) Hive Island Area

All of Hive Island and rocks adjacent thereto, lying between 59°52'31" and 59°53'16" north latitudes and 149°22'06" and 149°23'24" west longitudes, as shown on United States Coast and Geodetic Survey Chart No. 8529, June 1940.

The area described aggregates 225 acres.

(6) Cheval Island Area

All of Cheval Island and rocks adjacent thereto, lying between 59°45'42" and 59°46'56" north latitudes and 149°30'24" and 149°31'48" west longitudes, as shown on United States Coast and Geodetic Survey Chart No. 8529, June 1940.

The area described aggregates 330 acres.

(7) Barwell Island Area

All of Barwell Island and rocks adjacent thereto, lying between 59°51'18" and 59°51'36" north latitudes and 149°17'00" and 149°17'24" west longitudes, as shown on United States Coast and Geodetic Survey Chart No. 8529, June 1940.

The area described aggregates 36 acres.

Portions of Hive Island and Barwell Island are affected by Executive Order No. 3406 of February 13, 1921, reserving 168 parcels of land in Alaska for lighthouse purposes.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

FEBRUARY 3, 1948.

[F. R. Doc. 48-1210; Filed, Feb. 10, 1948; 8:48 a. m.]

TITLE 46—SHIPPING

Chapter I—Coast Guard: Inspection and Navigation

Subchapter E—Load Lines

[CGFR 48-2]

CONTROL OF MERCHANT VESSELS

MISCELLANEOUS AMENDMENTS

By virtue of the authority vested in me by section 101 of the Reorganization Plan No. 3 of 1946, 11 F. R. 7875, as well as the statutes cited with the regulations below, the following amendments to the regulations are prescribed, which shall become effective on and after March 1, 1948:

PART 43—FOREIGN OR COASTWISE VOYAGE

ADMINISTRATION

Section 43.021 (46 CFR, Supps.) is amended to read as follows:

§ 43.021 *Control.* (a) The Collector of Customs may detain a vessel for survey if he has reason to believe that the vessel is proceeding on her journey in excess of the draft allowed by the regulations in this part as indicated by the vessel's load line certificate, or otherwise. Immediately upon ordering a vessel detained, the Collector of Customs shall inform the Coast Guard District Commander thereof, who shall thereupon advise the collector whether or not he deems that the vessel may proceed to sea with safety. The Coast Guard District Commander may detain a vessel if it is so loaded as to be manifestly unsafe to proceed to sea, without advice thereof from the Collector of Customs. However, in such case, immediate notice of such detention shall be furnished the Collector of Customs so that clearance may be withheld.

(b) In the case of detention of a vessel, which shall be by written order, the detaining officer will immediately arrange for a survey in the manner prescribed by sections 7 of the Load Line Act of March 2, 1929 (45 Stat. 1494; 46 U. S. C. 85f), and of the Coastwise Load Line Act, 1935 (49 Stat. 889; 46 U. S. C. 88f). In the case of such a survey, the detaining officer shall appoint three disinterested surveyors and, where practicable, one of them shall be from the Surveying Staff of the American Bureau of Shipping. Where such surveyors are appointed by the Collector of Customs, such appointments shall be with the approval of the Coast Guard District Commander. Whenever a vessel is detained the master may, within five days, appeal to the Commandant, U. S. Coast Guard, who may, if he desires, order a further survey and may affirm, set aside, or modify the order of the detaining officer.

(c) Where a foreign vessel is detained or any action is taken which would appear likely to result in legal proceedings being taken against such a vessel, the consul of the country to which the vessel belongs shall be informed as soon as possible of the circumstances of the case.

(d) Pursuant to the provisions of sections 5 of the Load Line Act of March 2, 1929 (45 Stat. 1493; 46 U. S. C. 85d), and the Coastwise Load Line Act, 1935 (49 Stat. 889; 46 U. S. C. 88d), as amended, it is hereby certified that a vessel of a foreign country which has ratified the International Load Line Convention, 1930, shall be deemed a vessel of a foreign country as described in sections 5 of the cited acts, and such a vessel shall be exempt from the provisions of the regulations in this part insofar as the marketing of the load lines and the certificating thereof are concerned, only so long as such country similarly recognizes the load lines established by the regulations in this part, for the purpose of a voyage by sea: *Provided*, That the vessel is marked with load lines and has on board a valid load line certificate certifying to the correctness of the mark, the vessel shall not be loaded beyond the limits allowed by the certificate, the position of the load line of the vessel shall correspond with the certificate, the hull and superstructure shall not have been so materially altered as to affect the calculations on which the load line was based, and alterations have not been made so that the protection of openings, guard rails, freeing ports, and means of access to crew's quarters, have made the vessel manifestly unfit to proceed to sea without danger to human life. (Sec. 2, 45 Stat. 1493, and sec. 2, 49 Stat. 888; 46 U. S. C. 85a, 88a)

PART 45—MERCHANT VESSELS WHEN ENGAGED IN A VOYAGE ON THE GREAT LAKES

ADMINISTRATION

Section 45.018 (46 CFR, Supps.) is amended to read as follows:

§ 45.018 *Control.* (a) The Collector of Customs may detain a vessel for survey if he has reason to believe that the vessel is proceeding on her journey in excess of the draft allowed by the regulations in this part as indicated by the vessel's load line certificate, or otherwise. Immediately upon ordering a vessel detained, the Collector of Customs shall inform the Coast Guard District Commander thereof, who shall thereupon advise the collector whether or not he deems that the vessel may proceed to sea with safety. The Coast Guard District Commander may detain a vessel if it is so loaded as to be manifestly unsafe to proceed to sea, without advice thereof from the Collector of Customs. However, in such case, immediate notice of such detention shall be furnished the Collector of Customs so that clearance may be withheld.

(b) In the case of detention of a vessel, which shall be by written order, the detaining officer will immediately arrange for a survey in the manner prescribed by section 7 of the Coastwise Load Line Act, 1935 (49 Stat. 889; 46 U. S. C. 88f). In the case of such a survey, the detaining officer shall appoint three disinterested surveyors and, where practicable, one of them shall be from the Surveying Staff of the American Bureau of Shipping. Where such surveyors are appointed by the Collector of Customs, such appointments shall be with the approval of the Coast Guard District Commander. Whenever a vessel is detained the master may, within five days, appeal to the Commandant, U. S. Coast Guard, who may, if he desires, order a further survey and may affirm, set aside, or modify the order of the detaining officer.

(c) Where a foreign vessel is detained or any action is taken which would appear likely to result in legal proceedings being taken against such a vessel, the consul of the country to which the vessel belongs shall be informed as soon as possible of the circumstances of the case.

(d) Pursuant to the provisions of section 5 of the Coastwise Load Line Act, 1935 (49 Stat. 889; 46 U. S. C. 88d), as amended, it is hereby certified that a vessel of a foreign country which has ratified the International Load Line Convention, 1930, shall be deemed a vessel of a foreign country as described in sec-